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Case Number: 25NWCV04631 Hearing Date: July 16, 2026 Dept: C

MENDOZA vs LYFT, INC., et al.

CASE NO.: 25NWCV04631

HEARING: 7/16/26 @ 9:30 a.m.

#15

TENTATIVE ORDER

I.

Defendant

Lyft, Inc.'s Motion to Compel Arbitration is GRANTED. Proceedings against Lyft, Inc. are STAYED pending completion of arbitration between Lyft Inc. and Plaintiff.

II.

On

the Court's own motion, Prospective Intervenor Mobilias Insurance Company of Arizona's Motion for Leave to Intervene is ADVANCED from July 17, 2026 to today's date and GRANTED.

Moving Party to give
notice.

Plaintiff ARTURO MENDOZA, JR. (Plaintiff) alleges

that on February 3, 2024, a motor vehicle collision occurred in which Plaintiff Arturo Mendoza suffered multiple severe injuries after Defendant Li, who was driving for Defendant Lyft, Inc. and transporting Plaintiff as a passenger,

fell asleep at the wheel and drove straight into a side railing on a freeway ramp. (Compl., ¶¶

10; 14.) Based thereon Plaintiff alleges the following causes of action:

1.

General

Negligence;

2.

Negligence

Per Se;

3.

Negligent

Hiring, Supervision, or Retention; and

4.

Negligent

Entrustment.

MOTION TO COMPEL ARBITRATION

Defendant Lyft, Inc. (Lyft) moves to compel arbitration against Plaintiff Arturo Mendoza, Jr. and requests to stay the action.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction. . .has ordered arbitration of a controversy which is an

issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)ζζ

Discussion

I.

Existence of Valid Arbitration Agreement

Before compelling arbitration pursuant to the Federal Arbitration Act (FAA), "the court determines whether a valid arbitration agreement exists." (Henry Schein, Inc. v. Archer & White Sales, Inc. (2019) 586 U.S. 23 63, 69.) State law governs whether an agreement to arbitrate was formed. (First Options of Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 944.) To form a valid agreement in California, there must be: 1) parties capable of contracting; 2) mutual consent (offer and acceptance); 3) a lawful purpose; and 4) consideration. (Civ. Code, § 1550.) A party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalia v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.)

In the world of paper contracting, the outward manifestation of assent to the same thing by both parties is often readily established by the offeree's receipt of the physical contract. By contrast, when transactions occur over the internet, there is no face-to-face contact and the consumer is not typically provided a physical copy of the contractual terms. In that context, and in the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions on the website—including, for example, checking boxes and clicking buttons—but any such action must indicate the parties' assent to the same thing, which occurs only when the website puts the consumer on constructive notice of the contractual terms. Thus, in order to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting to those very terms when checking a box or clicking on a button. (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 943–944, citing Sellers v. JustAnswer LLC. (2021) 73 Cal.App.5th 444 (cleaned up).)

Lyft operates a mobile device-based ridesharing software platform that enables people who seek a ride to be matched with independent drivers who provide rides using personal vehicles. To access Lyft's software platform to request rides, a person (user) must first create a Lyft user account using the Lyft App. This process requires the user to input information such as the user's first and last name, email address, and phone number. After the user enters the required personal information, the user is then prompted within the Lyft App to accept the Terms of Service during their account creation process. According to Lyft, a user cannot access the Lyft software platform without first creating a Lyft user account and cannot request or purchase rideshare services through the Lyft App unless they have affirmatively accepted Lyft's Terms of Service.

Lyft asserts that Plaintiff agreed to Lyft's Terms of Service, including the arbitration agreement, via electronic acknowledgment. The relevant terms, as provided by Lyft, are as follows:

(a) Agreement to Binding

Arbitration Between You and Lyft. YOU AND LYFT MUTUALLY AGREE TO WAIVE OUR RESPECTIVE RIGHTS TO RESOLUTION OF DISPUTES IN A COURT OF LAW BY A JUDGE OR JURY AND AGREE TO RESOLVE ANY DISPUTE BY ARBITRATION, as set forth below. This agreement to arbitrate ("Arbitration Agreement") is governed by the Federal Arbitration Act ("FAA"); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles. This Arbitration Agreement survives after the Agreement terminates or your relationship with Lyft ends. ANY ARBITRATION UNDER THIS AGREEMENT WILL TAKE PLACE ON AN INDIVIDUAL BASIS; CLASS ARBITRATIONS AND CLASS ACTIONS ARE NOT PERMITTED. Except as expressly provided below, this Arbitration Agreement applies to all Claims (defined below) between you and Lyft...

(Simmons Decl. ¶ 12; see also COE, Exhs. 1-2.)

By entering into this Agreement, and/or by using or accessing the Lyft Platform, you expressly acknowledge that you understand this Agreement (including the dispute resolution and arbitration provisions in Section 17) and accept all of its terms. IF YOU DO NOT AGREE TO BE BOUND BY THE TERMS AND CONDITIONS OF THIS AGREEMENT, YOU MAY NOT USE OR ACCESS THE LYFT PLATFORM OR ANY OF THE SERVICES PROVIDED THROUGH THE LYFT PLATFORM.

(COE, Exh. 4.)

Lyft further describes the method by which users, like Plaintiff, accept Lyft's Terms of Service. As to Plaintiff, Lyft asserts that the following steps were taken to create a Lyft account:

"At the time Plaintiff accepted the December 12, 2022, Terms, Plaintiff (like all users) was presented directly on the screen of the Lyft App with the full text of those Terms, including the Agreement. (Simmons Decl. at ¶ 15.) At the top of the screen, immediately above the full text of the Lyft Terms, the Lyft App presented Plaintiff with a banner stating, "Before you can proceed you must read and agree to Lyft's Terms of Service." (Id.) At the bottom of the screen, immediately under the full text of the Terms, the Lyft App presented Plaintiff with a large "I Agree" button, which Plaintiff was required to click to demonstrate consent and agreement to be bound by the Terms and to proceed with use of the Lyft App. (Id.)" (Mem. p. 13: 20-27.)

"Plaintiff could not have used the Lyft App to request or purchase any of his over 400 rides on the Lyft Platform, including the ride involved in the Incident, without having affirmatively accepted Lyft's Terms by clicking the "I Agree" button." (Simmons Decl., ¶¶ 13-18.)

In opposition, Plaintiff disputes the existence of a valid arbitration agreement. Plaintiff argues he does not recall ever consenting to arbitrate any bodily injury claims against Defendant Lyft, Inc. as a result of any motor vehicle collision. (Flynn Decl., ¶3 and Exhibit A.) Plaintiff further argues that Simmons lacks "qualification" to make a declaration attesting to Plaintiff's consent to the terms of use because she is not a software engineer. Additionally, Plaintiff objects to the Simmons declaration as inadmissible hearsay.

The Court finds that Lyft has met its burden of showing that Plaintiff entered into valid arbitration agreements. As to Plaintiff's evidentiary objections the Court finds Plaintiff's arguments unpersuasive. First, Simmons declares to have been employed by Lyft for over ten years and has held her current position of Safety Senior Specialist since June 2022. (Simmons Decl. ¶¶ 1-2) She declared under penalty of perjury that she is "personally familiar with the record retention policies and record keeping systems of Lyft" and with "the records kept concerning Plaintiff[s]...consent to Lyft's Terms of

Service.” (Id. at ¶ 2.) Thus, the Court finds that adequate foundation for her declaration regarding Lyft’s consent and record-keeping processes is established. Second, Plaintiff’s hearsay objections are unavailing. Each of the exhibits attached to the Simmons declaration fall under the business records exception under Evidence Code section 1271.

As to the arbitration agreement, the record in this case, which includes the method used by Lyft to create user accounts together with Plaintiff’s assent to updates to those terms of use is sufficient to establish the existence of a valid agreement. Courts have identified at least four methods of internet contract formation, each defined by the way in which the user purportedly gives their assent to be bound by the associated terms. The four methods are known as browsewraps, clickwraps, scrollwraps, and sign-in wraps. (Sellers v. Just Answer LLC, supra, 73 Cal.App.5th 444, 463-64.) “A ‘browsewrap’ agreement is one in which an internet user accepts a website’s terms of use merely by browsing the site. A ‘clickwrap’ agreement is one in which an internet user accepts a website’s terms of use by clicking an ‘I agree’ or ‘I accept’ button, with a link to the agreement readily available. A ‘scrollwrap’ agreement is like a ‘clickwrap,’ but the user is presented with the entire agreement and must physically scroll to the bottom of it to find the ‘I agree’ or ‘I accept’ button. ... ‘Sign-in-wrap’ agreements are those in which a user signs up to use an internet product or service, and the sign-up screen states that acceptance of a separate agreement is required before the user can access the service. While a link to the separate agreement is provided, users are not required to indicate that they have read the agreement’s terms before signing up.” (Ibid, italics in original.)

When Plaintiff accepted the December 12, 2022 Terms of Service, he was presented with the full text of the Lyft Terms of Service. At the bottom of the screen, immediately under the full text of the Lyft Terms of Service, the Lyft App presented Plaintiff with a large “I Agree” button.

Plaintiff was required to click the button to demonstrate consent and agreement to be bound by the Terms of Service and to proceed with use of the Lyft App. (Simmons Decl., ¶15.)

This is a scrollwrap agreement because the full text of the terms of service appears on the screen, and the user must scroll to the bottom to find and click the “I Agree” button.

Scrollwrap agreements are generally enforceable because users are required to affirmatively click a button to confirm their assent to

the agreement's terms. (Sellers, supra, at 466; Long v. Provide Commerce, Inc. (2016) 245 Cal.App.4th 855, 862.) Plaintiff was presented with a large "I Agree" button" which he was required to click to demonstrate consent and agreement to be bound by the Terms of Service and to proceed with use of the Lyft App. (Simmons Decl., ¶15.) Plaintiff offers no persuasive evidence to rebut Lyft's showing that Plaintiff was given reasonable notice of the terms of service. On this record, the Court determines that Lyft has met its burden of showing that Plaintiff entered into valid arbitration agreements.

II.

Enforcement of Valid Arbitration Agreement

Having determined that a valid arbitration agreement exists, the Court must determine whether the agreement is enforceable. The FAA does not preempt application of the CAA to an arbitration agreement in which the parties have agreed to be governed by California law. The FAA does preempt state law, however, when the parties have not so agreed. (Mastick v. TD Ameritrade, Inc. (2012) 209 Cal.App.4th 1258, 1261.)

Here, the terms of service agreement between Lyft and Plaintiffs generally provide that the parties will be governed by California law. However, Section 17 sets forth the rights of the parties regarding dispute resolution and the arbitration agreement, and Section 17 states that disputes between them will be resolved through arbitration in accordance with the "Federal Arbitration Act ("FAA"); but if the FAA is inapplicable for any reason, then this Arbitration Agreement is governed by the laws of the State of Delaware, including Del. Code tit. 10, § 5701 et seq., without regard to choice of law principles." (See, e.g., COE, Exh. 2; Exh. 6.) Therefore, the FAA governs the arbitration agreement.

The FAA requires courts to enforce arbitration provisions. (9 U.S.C., § 2.) It does not authorize courts to stay arbitration pending resolution of litigation, or to refuse to enforce a valid arbitration provision to avoid duplicative proceedings or conflicting rulings. (9 U.S.C. § 4 [the court shall make an order directing the parties to proceed to arbitration].) (Mastick v. TD Ameritrade, Inc. (2012) 209 Cal.App.4th 1258, 1263.) Therefore, the arbitration agreement must be enforced.

The Court finds that the arbitration agreement is enforceable. The motion to compel arbitration is GRANTED.

MOTION FOR LEAVE TO INTERVENE

Proposed Intervenor MOBILITAS INSURANCE COMPANY OF ARIZONA moves for leave to intervene in the action pursuant to CCP § 387(d)(1). Mobilitas issued an automobile insurance policy that may provide liability coverage to Li and Mobilitas has retained Attorney Bernadette Castillo Brouses in this action. (Brouses Decl., ¶¶5-6.) Counsel for Li, Shelly A. Stuppiello, has been unable to reach and communicate with Li. (Id., ¶10; Stuppiello Decl., ¶9.) On this basis, Mobilitas seeks leave to intervene. In opposition, Plaintiff ARTURO MENDOZA, JR. argues that the Brouses declaration relies upon inadmissible hearsay, the requirements of CCP § 387(d)(1) are not met, and the Proposed Complaint in Intervention enlarges the issues relevant to Plaintiff's negligence claims.

Section 387(d)(1) states in relevant part: "(d)(1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied ... (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties."

The Court finds that Mobilitas has sufficiently demonstrated that it has an interest relating to the litigation as Li's liability insurer. Moreover, Defendant Lyft, Li's employer at the time of the incident, does not adequately represent Mobilitas's interest because Lyft's interests are potentially adverse to Mobilitas. Lyft may argue that Li, who was allegedly asleep when his vehicle collided into Plaintiff's vehicle, was not acting in the course and scope of his employment at the time of the incident.

Accordingly, the motion to intervene is GRANTED. Mobilitas shall separately file and serve its Complaint in Intervention within 5 days.